GUJARAT

A FEW GAPS IN THE BLACK MAGIC LAW

By Jumana Shah

In August, Gujarat officially outlawed black magic and related inhuman practices. But the landmark bill that effected this—criminalising human sacrifice, cruel practices and allied superstitious acts—is still being seen only as a beginning.

For Ashwin Karia, it was a moment of reckoning. The former law professor's public interest litigation (PIL) in the Gujarat High Court is what led to the unanimous passage of the Gujarat Prevention and Eradication of Human Sacrifice and Other Inhuman, Evil and Aghori Practices and Black Magic Bill, 2024. Karia, founder of the Gujarat-Mumbai Rationalist Association, had filed the PIL in January after over two decades of campaigning against superstition that resulted in the painful deaths of children, among other horrors. Within six months, the government promised to introduce a law against such practices, and made good on its word by August.

Karia did feel a sense of accomplishment: after all, it was for the first time that the government was even admitting that these practices are illegal. But he is aware that a stiff challenge lies ahead: spreading awareness among rural folk, still widely trapped in blind faith towards the supposed magical powers of godmen, *aghori babas* and *bhuvas*. The purpose of the bill, said minister of state for home affairs Harsh Sanghavi while presenting it in the assembly, is to protect people against conmen and imposters who claim to possess superhuman powers and promise to exorcise evil, ghosts, treat illnesses by swindling people of money and land, and leading, in many cases, to the deaths of children who are either offered as human sacrifice or denied medical attention. The punishment will be at least six months in prison up to seven years and a fine between Rs 5,000 and Rs 50,000.

Karia is disappointed, though, that the law stops short of using the government network of ASHA workers or other block-level officers with the widest reach to spread awareness on the issue. "That task remains with us rationalist organisations," he says, although he believes that the law will help their campaigns in schools, colleges, and community and youth gatherings etc. Moreover, his engagement with the government will continue to plug the 'gaps'. "A serious crime like abetting the death of a person or child by promising a cure to a disease or seeking human sacrifice should be read with the relevant sections of murder, which calls for a much stricter punishment than six months to seven years of jail. Also, some of the religious practices not included in the bill's purview need to be reviewed," he says.

The fact that these practices are finely intertwined with religion makes it tougher for any government to completely clamp down on them. For instance, the bill does not ban the publicity and propagation of 'miracles' of deceased saints and religious preachers. Karia says fables that have no scientific basis or proof thereof support the concept of blind faith and must thus be banned. Sanghavi also skillfully navigated past the delicate question by distancing the bill from "well-established religious practices", asserting that the government does not interfere with them or the "miracles of well-regarded godmen and saints".

Gandhidham-based paediatrician Dr Rajesh Maaheshwari says he has treated "thousands of children with burn marks on their body" —and there were many he couldn't save. "At least in Kutch district, the practice of burning the child with a hot iron rod to 'treat' them has nearly stopped, but other inhuman practices continue." The lawyer who represented the petitioners in the high court, Harsh Raval, is a student of Karia. He suggests: "Society can never be ready for a complete change of beliefs, but what can be done is define certain acts as inhumane and seek remedy against them."

The bill also has a provision to appoint a vigilance officer who will be tasked with preventing, detecting and taking action against criminal acts of superstition. Now to ensure awareness that such a law exists, for people to use it. ■

TARGETING BLIND FAITH

- **The Gujarat Prevention and Eradication of Human Sacrifice and Other Inhuman, Evil and Aghori Practices and Black Magic Bill aims to protect people from conmen and imposters who exploit superstition, leading to harmful practices**
- **It won't interfere with 'well-established religious practices' or 'miracles of well-regarded godmen and saints'**



- **Offenders face jail term from six months to seven years and a fine between Rs 5,000 and Rs 50,000**

Illustration by SIDDHANT JUMDE